

BEFORE THE FEDERAL MARITIME COMMISSION

INTERMODAL MOTOR CARRIERS CONFERENCE,
AMERICAN TRUCKING ASSOCIATIONS, INC.

Complainant,

v.

OCEAN CARRIER EQUIPMENT MANAGEMENT
ASSOCIATION, INC., CONSOLIDATED CHASSIS
MANAGEMENT, LLC, CMA CGM S.A., COSCO
SHIPPING LINES CO. LTD., EVERGREEN LINE
JOINT SERVICE AGREEMENT, FMC NO. 011982,
HAPAG-LLOYD AG, HMM CO. LTD., MAERSK
A/S, MSC MEDITERRANEAN SHIPPING
COMPANY S.A., OCEAN NETWORK EXPRESS
PTE. LTD., WAN HAI LINES LTD., YANG MING
MARINE TRANSPORT CORP., AND ZIM
INTEGRATED SHIPPING SERVICES,

Respondents.

FMC Docket No. 20-14

JOINT STATUS REPORT AND PROPOSED AMENDED DISCOVERY SCHEDULE

Complainant and Respondents (collectively the “Parties”) have conferred and submit this Joint Status Report and Proposed Amended Discovery Schedule.

To date, the Parties have engaged in the following discovery:

- March 1: The Parties filed the first Joint Motion for Entry of Stipulation and Order of Confidentiality.
- March 19: Complainant served subpoenas issued to non-parties Direct ChassisLink, Inc., Flexi-Van Leasing, Inc. and Interpool, Inc. d/b/a TRAC (the “IEPs”).
- April 2: The Parties served their respective Priority Document Productions; and Respondents served written Responses to Complainant’s Requests for

Production of Documents. Supplemental Priority Documents were also served during the following two weeks.

April 5: Respondents served subpoenas issued to ten IMCC members.

April 7: Complainant served Answers to Respondents' Interrogatories and written Responses to Respondents' Requests for Production of Documents.

April 13 & 15: Respondents served subpoenas on four additional IMCC members.

April 21 & 26: The Parties exchanged search terms for use in the search for documents responsive to the Parties' respective Requests for Production.

May 1: Complainant served First Set of Interrogatories and Second Request for Production of Documents on Respondents.

May 3: IMCC members served written responses to Respondents' subpoenas.

May 14: IMCC moved to compel Discovery against nonparties, the IEPs.

May 21: The Parties filed a Stipulation and Amended Order of Confidentiality to extend its terms to non-parties as well as to the Parties.

May 27: The IEPs filed a Motion to Amend the Amended Order of Confidentiality.

Following the exchange of search terms, the thirteen Respondents have been searching their respective databases for documents responsive to the Complainant's Requests for Production. In accordance with the Presiding Officer's guidance in the Order Denying Respondents' Motion for Leave to File Interlocutory Appeal, dated January 29, 2021 ("January 29 Order"), Complainant agreed to limit the time frame for the scope of Respondents' production from January 1, 2015 to the present; however, even with this reduced scope, the average size of the database of documents which each Respondent has been required to search is approximately 1 Terabyte (equivalent to approximately 75 million pages). Following electronic searches and

refinements of each database, manual reviews must be completed, the documents appropriately marked and prepared for production. Respondents have not been able to complete this extensive work within the time frame established in the original Scheduling Order.

As to Complainant, following the exchange of agreed-upon queries, IMCC electronically searched its files. IMCC then manually reviewed 22,073 documents for those responsive to Respondents' Requests for Production. IMCC has limited its production to (1) the agreed-upon relevant time periods, which differ by Request; and (2) the four geographic areas identified in the first Joint Status Report (March 1, 2021) ("March 1 Report"): the Ports of Los Angeles/Long Beach, the Port of Savannah, the Intermodal Terminals near Chicago and the Intermodal Terminals near Memphis. The responsive documents are currently being processed for production to Respondents.

Respondents have served subpoenas on 13 nonparty motor carriers that Complainant's counsel separately represents. Even after narrowing the subpoenas in accordance with the parties' discovery agreement, the universe of motor carrier documents far exceeds three million documents, even though it excludes certain documents for the motor carriers that do not operate in the four geographic areas identified in the March 1 Report. As a result, the motor carriers, through counsel, will perform electronic searches, and then conduct a manual review for responsiveness and privilege. The motor carriers have not been able to complete this extensive work within the time frame established in the original Scheduling Order.

In addition, a dispute exists between IMCC and Respondents as to whether the Parties had agreed to phased discovery with an initial geographic limitation, as described below.

IMCC's Position: In the January 29 Order, the Presiding Officer encouraged the Parties to "identify ways to limit the time and expense with this proceeding," including "whether it

would be helpful to initially limit discovery (for example to a limited geographic area or time period), and whether it would be helpful to conduct limited discovery prior to filing a motion seeking summary decision, with additional discovery permitted if the motion is denied.” Order Denying Motion for Leave to File Interlocutory Appeal, Dkt. 24, at 9. IMCC understood that the March 1 Report, pursuant to the Presiding Officer’s guidance, memorialized the Parties’ agreement that “initial” discovery, *i.e.*, all discovery prior to motions for summary decision, would be limited, as appropriate, to the four geographical areas. IMCC thus has limited the scope of its requested discovery from the IEPs, as appropriate, to the four geographic areas identified in the Report. IMCC believes that the Presiding Officer can expedite this proceeding by providing guidance to the Parties as to the current scope of discovery.

Respondents’ Position: A dispute does exist with respect to the geographic scope of discovery, which Respondents had hoped to resolve without judicial intervention. Respondents’ counsel do not agree with Complainant’s interpretation of the “geographic areas” referenced in the March 1 Report, which Respondents understood only as a reflection of the agreement to facilitate Complainants’ request for prioritizing “initial Party” document discovery, not a limitation on all discovery in the proceeding, and certainly not with respect to non-Party discovery. The language in the Report is clear on this, stating “the Parties have conferred and propose limiting certain categories of initial Party document discovery to the following geographic areas...” (emphasis supplied”) The geographic limitation applied to the Priority Document Productions which were served on April 2, 2021, and were not intended to limit all discovery to the four geographic regions selected by IMCC and certainly not to subpoenas served on non-parties. In any case, the proposed geographic limitation on initial Party priority document production has not achieved any savings in document review time or expense for

Respondents, due in part to the generally broad scope of search terms requested by Complainant and the fact that Respondents' potentially responsive documents are maintained in custodians' mailboxes and are not stored geographically. As a result, geography was not a mutually useful limitation on the scope of initial Party discovery. Further, to place such a restriction on Respondents' Party and non-Party discovery requests would constitute a material limitation on Respondents' right to discoverable information pertaining to other relevant ports and terminals beyond the four which have been selected by Complainant. Respondents did not agree to such a sweeping, unilateral discovery limitation. In the event the Parties are unable to resolve this issue, Respondents will file a motion to compel, in accordance with the Rules, which will more fully present the reasons why limiting discovery to the geographic regions selected by Complainant's counsel was neither agreed to nor would result in a fair resolution of the claims asserted in the Complaint.

In light of the additional time needed to finish review and production of the documentary discovery described above, the Parties request that the date to complete document production be extended for sixty days¹ and that the schedule of proceedings be commensurately amended as follows:

Event	Deadline
Complete Document Production	August 2, 2021
Complete Fact Depositions	September 17, 2021
Disclosure of Initial Expert Reports	October 18, 2021
Disclosure of Rebuttal Expert Reports	November 8, 2021
Expert Discovery Cut-off	November 22, 2021
Completion of Discovery	December 6, 2021
Motions for Summary Decision	December 20, 2021

¹ IMCC joins this request for a two-month extension based on its position as to the geographic scope of initial discovery. If the geographic areas identified in the March 1 Report do not limit initial discovery, especially for nonparties like the 13 motor carriers and the three IEPs, a longer extension may be necessary.

Respectfully submitted,

Dated: June 1, 2021

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CERTIFICATE OF SERVICE

I certify that, on June 1, 2021, a true and current copy of the foregoing Joint Status Report and Proposed Amended Discovery Schedule was filed via electronic mail with the Secretary of the Federal Maritime Commission, and a copy was served via electronic mail on the following counsel:

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